

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nora Chanko	Team: Squad #3	CCRB Case #: 201702871	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 04/11/2017 5:00 PM	Location of Incident: Clarkson Avenue and East 53rd Street; 67th Precinct stationhouse	Precinct: 67	18 Mo. SOL 10/11/2018	EO SOL 10/11/2018	
Date/Time CV Reported Thu, 04/13/2017 2:15 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 04/13/2017 2:15 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Makaida Sealy	06726	949649	067 PCT
2. POM Robert Bianco	02904	950079	067 PCT
3. POM Michael Fiandola	11031	955914	067 PCT
4. POM Guosheng Du	14727	961741	067 PCT
5. POM John Ramos	15813	957985	067 PCT
6. POM Timothy Reilly	05913	949535	067 PCT
7. An officer			
8. Officers			

Officer(s)	Allegation	Investigator Recommendation
A.POM Timothy Reilly	Discourtesy: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Timothy Reilly spoke discourteously to § 87(2)(b)	
B.POM Timothy Reilly	Abuse: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Timothy Reilly interfered with an individual's use of a recording device.	
C.POM Timothy Reilly	Force: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Timothy Reilly used physical force against § 87(2)(b)	
D.POM Timothy Reilly	Abuse: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Timothy Reilly threatened § 87(2)(b) with the use of force.	
E.POM Timothy Reilly	Abuse: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Timothy Reilly drew his gun.	

Officer(s)	Allegation	Investigator Recommendation
F.POM Timothy Reilly	Discourtesy: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Timothy Reilly spoke discourteously to § 87(2)(b)	
G.POF Makaida Sealy	Force: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Makaida Sealy used physical force against § 87(2)(b)	
H.POM Michael Fiandola	Force: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Michael Fiandola used physical force against § 87(2)(b)	
I.POM Guosheng Du	Force: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Guosheng Du used physical force against § 87(2)(b)	
J.POM John Ramos	Force: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer John Ramos used physical force against § 87(2)(b)	
K.POM Robert Bianco	Force: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Robert Bianco used physical force against § 87(2)(b)	
L. An officer	Force: On Clarkson Avenue and East 53rd Street in Brooklyn, an officer used physical force against § 87(2)(b)	
M.POM Timothy Reilly	Discourtesy: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Timothy Reilly spoke discourteously to § 87(2)(b)	
N.POM Timothy Reilly	Force: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Timothy Reilly used physical force against § 87(2)(b)	
O. Officers	Abuse: On Clarkson Avenue and East 53rd Street in Brooklyn, officers threatened § 87(2)(b) with the use of force.	
P.POM Robert Bianco	Force: At the 67th Precinct stationhouse, Police Officer Robert Bianco used physical force against § 87(2)(b)	
Q.POM Robert Bianco	Discourtesy: At the 67th Precinct stationhouse, Police Officer Robert Bianco spoke discourteously to § 87(2)(b)	
R. An officer	Abuse: At the 67th Precinct stationhouse, an officer threatened § 87(2)(b) with the use of force.	
S. An officer	Discourtesy: At the 67th Precinct stationhouse, an officer spoke discourteously to § 87(2)(b)	

Case Summary

This complaint was filed with the CCRB on April 13, 2017, by § 87(2)(b) via phone.

At approximately 5:00 p.m. on April 11, 2017, § 87(2)(b) § 87(2)(b)'s son, was pulled over on Clarkson Avenue and East 53rd Street in Brooklyn, by PO Timothy Reilly and PO Robert Bianco of the 67th Precinct. PO Reilly allegedly spoke discourteously to § 87(2)(b) **(Allegation A: Discourtesy,** § 87(2)(g) § 87(2)(b)'s friend, known only as '§ 87(2)(b) or '§ 87(2)(b) was in the area and began recording the incident, and PO Reilly told him that he could not record **(Allegation B: Abuse of authority,** § 87(2)(g) § 87(2)(b) was placed under arrest and was charged with § 87(2)(a) 160.50

§ 87(2)(b). Additional civilians arrived to the scene, including § 87(2)(b) and § 87(2)(b) PO Reilly allegedly stepped on § 87(2)(b) foot **(Allegation C: Force,** § 87(2)(g) PO Reilly took his Taser out, allegedly pointed it at § 87(2)(b) and allegedly verbally threatened § 87(2)(b) with force **(Allegation D: Abuse of Authority,** § 87(2)(g) PO Reilly allegedly drew his gun **(Allegation E: Abuse of Authority,** § 87(2)(g) and spoke discourteously towards § 87(2)(b) again **(Allegation F: Discourtesy,** § 87(2)(g)

PO Reilly requested additional units to respond to the location, and numerous officers from the 67th Precinct arrived, including PO Makaida Sealy, PO Guosheng Du, PO John Ramos, and PO Michael Fiandola. § 87(2)(b) was placed under arrest and charged with § 87(2)(a) 160.50 § 87(2)(b). PO Sealy, PO Du, PO Ramos, and PO Fiandola used force while placing § 87(2)(b) in handcuffs **(Allegations G, H, I, and J: Force,** § 87(2)(g) PO Bianco and an officer allegedly used force to place § 87(2)(b) in the vehicle **(Allegations K and L: Force,** § 87(2)(g) PO Reilly allegedly spoke discourteously to § 87(2)(b) and closed the door on his foot **(Allegation M: Discourtesy,** § 87(2)(g) **Allegation N: Force,** § 87(2)(g) Officers allegedly threatened § 87(2)(b) with the use of force **(Allegation O: Abuse of Authority,** § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) were removed in separate vehicles. § 87(2)(b) was removed to the 67th Precinct stationhouse and then to § 87(2)(b) § 87(2)(b), where she was diagnosed with a dislocated right elbow. § 87(2)(b) was removed to the 67th Precinct stationhouse.

At the 67th Precinct stationhouse, § 87(2)(b) alleged that PO Bianco punched him **(Allegation P: Force,** § 87(2)(g) and spoke discourteously to him **(Allegation Q: Discourtesy,** § 87(2)(g) § 87(2)(b) also alleged that another officer threatened him with force and spoke discourteously to him **(Allegation R: Abuse of Authority,** § 87(2)(g) **Allegation S: Discourtesy,** § 87(2)(g)

§ 87(2)(b) provided video footage, which can be found in IA 39 and 01 Board Review. Video footage was also obtained from the Department of Education, which can be found in IA 92 and 02 Board Review.

Findings and Recommendations

Allegation (A) Discourtesy: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Timothy Reilly spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that he was driving alone in a vehicle owned by § 87(2)(b) when he was pulled over by PO Reilly and PO Bianco. § 87(2)(g)

After PO Reilly and PO Bianco approached his vehicle, § 87(2)(b) asked PO Reilly what the “proper cause” was for them to pull him over, to which PO Reilly replied, “You don’t know what the fuck is a proper cause.” PO Reilly, PO Bianco, and § 87(2)(b) had a brief interaction and they asked § 87(2)(b) for his documents. § 87(2)(b) looked for the documents in his car. § 87(2)(b) said that PO Reilly told him that he was making too many movements and said, “Get the fuck out the car.” After § 87(2)(b) got out of the vehicle, PO Reilly obtained his license and told PO Bianco to run his name. § 87(2)(b) and PO Reilly stood by the back of his vehicle and PO Reilly said, “Y’all are some fucking dumbasses.” PO Bianco walked back towards his vehicle and said that § 87(2)(b) had an I-Card and a warrant. PO Reilly placed § 87(2)(b) in handcuffs.

§ 87(2)(b) who was familiar with § 87(2)(b) from the neighborhood, did not allege that either § 87(2)(b) or PO Reilly used profanity while speaking to one another (07 Board Review).

§ 87(2)(b) and § 87(2)(b) did not witness this portion of the incident (04 Board Review).

The video footage with audio does not capture this portion of the incident.

PO Reilly stated that § 87(2)(b) yelled and cursed throughout their interaction at his vehicle. He denied saying, “You don’t know what the fuck is a proper cause,” “Get the fuck out the car,” or, “Y’all are some fucking dumbasses,” and denied cursing at § 87(2)(b) at all during the interaction.

PO Bianco § 87(2)(g) denied that PO Reilly said, “Get the fuck out the car,” or, “Y’all are some fucking dumbasses,” and was not aware of him saying, “You don’t know what the fuck is a proper cause.”

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (B) Abuse of Authority: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Timothy Reilly interfered with an individual's use of a recording device.

§ 87(2)(b) stated that after PO Reilly placed him in handcuffs, he saw § 87(2)(b)'s friend, known only to him as "§ 87(2)(b) § 87(2)(b)" asked "§ 87(2)(b) to call § 87(2)(b) and he said that he had already called her. At some point, PO Reilly told "§ 87(2)(b) not to record anything. In response to this, "§ 87(2)(b) pulled out his other phone and said, "What? You think you're bad? You think you're bad?" PO Reilly walked § 87(2)(b) to the rear passenger's side of the police vehicle and placed him into the vehicle in a seated position.

§ 87(2)(b) was not present during this portion of the incident; however, she knew the person who took the video as "§ 87(2)(b) or "§ 87(2)(b) (05 Board Review). Neither § 87(2)(b) nor § 87(2)(b) knew "§ 87(2)(b) full name, and § 87(2)(b) would not provide his contact information without first checking with him. § 87(2)(b) later said that she had talked to "§ 87(2)(b) and he did not wish to participate in the investigation.

§ 87(2)(b) was not present for this portion of the incident. Neither § 87(2)(b) nor § 87(2)(b) stated that PO Reilly or any officer told a civilian that they could not record the incident (04, 05, and 07 Board Review).

PO Reilly stated that some of the people in the crowd had their cell phones out, but he did not know what they were doing with them. PO Reilly denied telling anyone that they could not record the incident.

PO Bianco stated that people in the crowd began filming the incident, but denied that PO Reilly instructed anyone to stop recording the incident. No other officers were present during this portion of the incident.

The video provided to the investigation by § 87(2)(b) which was recorded by "§ 87(2)(b) begins after § 87(2)(b) was already in the police vehicle and therefore would not have captured the allegation (06 Board Review).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Allegation (C) Force: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Timothy Reilly used physical force against § 87(2)(b)

§ 87(2)(b) said that § 87(2)(b) arrived at the scene once he was seated in the police vehicle with his buttocks on the seat and his feet on the cement outside of the vehicle. After speaking to the officers briefly, § 87(2)(b) went to the vehicle he had been driving. PO Bianco told § 87(2)(b) that she could not touch the car, and § 87(2)(b) stated that PO

Bianco used force to physically remove her from the car § 87(2)(g) § 87(2)(b) stood up out of the police vehicle for the first time at which point, PO Reilly placed his left foot on § 87(2)(b) right foot and applied pressure. PO Reilly told § 87(2)(b) not to move multiple times, and applied more pressure. § 87(2)(b) who had walked back over to where § 87(2)(b) and PO Reilly were standing, asked PO Reilly why he was telling § 87(2)(b) not to move when he was stepping on § 87(2)(b) foot. § 87(2)(b) moved his foot backwards so that PO Reilly's foot was no longer on top of it. § 87(2)(b) stood up numerous times during the incident despite being told to remain in the vehicle.

In both her initial complaint and her sworn statement, § 87(2)(b) stated that she saw PO Reilly place his heel on § 87(2)(b) toe and that § 87(2)(b) complained that PO Reilly was stepping on his toe, which was causing him pain (10 Board Review). § 87(2)(b) could not specify whether PO Reilly was stepping on one or both of § 87(2)(b) feet.

§ 87(2)(b) stated that the officers had tried to lift § 87(2)(b) feet up to get them in the vehicle but he did not allow them to do this. She heard him say "Ow" and when she looked over, she saw PO Reilly stepping on his foot (03 Board Review).

Neither § 87(2)(b) nor § 87(2)(b) mentioned that any officer stepped on § 87(2)(b) foot (04 Board Review).

PO Reilly stated that when § 87(2)(b) stood up and tried to get out of the car, he grabbed § 87(2)(b) arms and held him into the car. PO Reilly denied doing anything else and denied stepping on § 87(2)(b) feet.

PO Bianco denied that PO Reilly stepped on § 87(2)(b) foot. None of the other officers were present at the time that PO Reilly allegedly stepped on § 87(2)(b) foot.

Video footage captured the moment § 87(2)(b) stood up out of the police vehicle but then the camera quickly moved away from him. When the camera focuses back on him, 12 seconds later, § 87(2)(b) is still standing up. PO Reilly appears to have his right hand on § 87(2)(b) chest and tells him to "Stay in the car." Both PO Reilly and § 87(2)(b) are wearing black shoes, and as the tire and the shadow under the vehicle are both black, it is difficult to see whether PO Reilly's foot is on top of § 87(2)(b) foot. Shortly after, § 87(2)(b) sits back in the vehicle, with his feet on the cement outside, and says, "Get off my foot," numerous times. § 87(2)(b) and a male voice tell PO Reilly to get off of § 87(2)(b) foot. § 87(2)(b) can be seen moving his feet away from PO Reilly's feet and PO Reilly moves his left foot in the direction of § 87(2)(b) feet.



2018-04-10_16-21-20.mp4

Patrol Guide Procedure 221-02 states that officers should apply no more than the reasonable force necessary to gain control. This procedure defines active resisting as physically evasive movements to defeat an officer's attempt at control, including bracing, tensing, pushing, or

verbally signaling an intention to avoid or prevent being taken into or retained in custody. (12 Board Review)

§ 87(2)(g)

Allegation (D) Abuse of Authority: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Timothy Reilly threatened § 87(2)(b) with the use of force.
Allegation (E) Abuse of Authority: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Timothy Reilly drew his gun.

Initially, § 87(2)(b) said that after he removed his foot from being under PO Reilly's foot, PO Reilly took out his Taser and touched it to the right side of § 87(2)(b) chest. PO Reilly told § 87(2)(b) not to move and said, "Look, you move, I'm going to tase you." § 87(2)(b) said that PO Reilly took his gun out of his holster a minute or two after he pulled his Taser out. § 87(2)(b) later said that when officers placed § 87(2)(b) against a wall and handcuffed her, he stood up for a second time, which was when PO Reilly took his Taser out and made the above comments about tasing him.

During a subsequent phone statement, § 87(2)(b) stated that PO Reilly held his gun in his right and his Taser in his left hand (08 Board Review). § 87(2)(b) did not remember whether the gun was facing him or the ground, but said that PO Reilly put it away after about five to 10 seconds. PO Reilly said, "You keep going on, we're gonna shoot. You keep acting like this, we're going to shoot you." § 87(2)(b) had not made that allegation in his sworn statement.

PO Reilly stated that § 87(2)(b) tried to get out of the vehicle and stood up multiple times. PO Reilly first stated that he kept § 87(2)(b) in the vehicle by grabbing his arms and holding him into the seat of the car, and said that he did not do anything else. PO Reilly later said that one of the times that § 87(2)(b) stood up, he pushed his chest and shoulders into PO Reilly and was "really trying to get away." PO Reilly took his Taser out and held it in one hand, but did not remember whether he pointed it at § 87(2)(b) or pressed it against his body. PO Reilly told § 87(2)(b) to sit back down in the car, which he did. PO Reilly put his Taser away after § 87(2)(b) got back into the car, but could not remember how long he had it out for. PO Reilly did not think he said, "Look, you move, I'm going to tase you," and did not remember making any statements that he would use the Taser if § 87(2)(b) "kept acting up." PO Reilly denied drawing his weapon and denied threatening anyone with the use of force.

Video footage shows that PO Reilly took out his taser once § 87(2)(b) stood up from the car. With the taser in his hand, he pushes § 87(2)(b) back into the car. Once § 87(2)(b) is seated in



Snag 3.mp4

§ 87(2)(g) [REDACTED]

§ 87(2)(b) stated that PO Reilly used the word “fuck” about three times while he was in the first police vehicle, including the statements, “Get the fuck in,” “Sit the fuck down,” “Stop fucking moving around,” and “You’re doing too much fucking movements.”

As discussed above, PO Reilly stated that he instructed § 87(2)(b) to remain in the vehicle, but he denied cursing during the incident and specifically denied making the statements, “Sit the fuck down,” “Stop fucking moving around,” and, “You’re doing too much fucking movements.”

As discussed above and seen in snag-it clip 3 under allegations D and E, anything PO Reilly says to § 87(2)(b) during this part of the incident is not audible in the video footage as there is so much screaming from § 87(2)(b) and the crowd.

§ 87(2)(g)

§ 87(2)(g)

Allegation (G) Force: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Makaida Sealy used physical force against § 87(2)(b)

Allegation (H) Force: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Michael Fiandola used physical force against § 87(2)(b)

Allegation (I) Force: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Guosheng Du used physical force against § 87(2)(b)

Allegation (J) Force: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer John Ramos used physical force against § 87(2)(b)

§ 87(2)(b) stated that after she returned from her vehicle with PO Bianco she stood in the street and was told to step onto the sidewalk. § 87(2)(b) stepped onto the sidewalk, but walked into the street when she heard § 87(2)(b) screaming about his toe. As she asked PO Reilly why he was stepping on § 87(2)(b) toe, additional officers arrived. Neither PO Reilly nor any other officer instructed § 87(2)(b) to do anything, and she stood in the street by the curb. PO Sealy approached § 87(2)(b) and pushed her on her chest, which caused her to move backwards and step back onto the sidewalk. § 87(2)(b) initially said she came forward after she was pushed, but later said that she did not make any movements towards PO Sealy after she was pushed. § 87(2)(b)'s back was towards a wall that was about three feet behind her, and eight to 10 male officers approached her. Multiple officers turned her around by her shoulders, and “slammed” her against the wall. § 87(2)(b)'s left hand was placed in handcuffs, and an officer placed her right hand in handcuffs, held her right wrist, and twisted it. § 87(2)(b) referred to PO Sealy as the officer who twisted her hand. § 87(2)(b) screamed that the officers were going to break her hand, but the officer continued to twist her hand for four minutes while she remained against the wall. § 87(2)(b) denied making any movements with her body, other than turning her head, and denied stiffening her arms behind her back. § 87(2)(b) heard her arm “come out of joint.” When she was released from the wall, § 87(2)(b)'s right hand was hanging. § 87(2)(b) denied striking or attempting to strike an officer during the incident.

PO Sealy, PO Ramos, PO Fiandola, and PO Du all consistently described § 87(2)(b) disobeying their commands by attempting to approach the police vehicle where § 87(2)(b) was being held, and exhibiting active aggression and resistance by swinging at the officers and resisting arrest, by pulling her arms away, and tensing up. They all described that PO Sealy pushed § 87(2)(b) back towards the sidewalk after § 87(2)(b) pushed her and that they grabbed her arms to place her in handcuffs and used no additional force against her.

Video footage shows that when PO Sealy held out her hand to keep § 87(2)(b) from further approaching § 87(2)(b) reaches towards PO Sealy, who in turn, moves backwards before pushing § 87(2)(b) towards the sidewalk. It is unclear whether § 87(2)(b) made physical contact with PO Sealy. PO Fiandola then attempts to grab § 87(2)(b)'s hand and she pulls away from him, and then swings her fists at him. § 87(2)(b)

§ 87(2)(b) is ordered to place her hands behind her back and PO Sealy, PO Ramos, PO Fiandola, and PO Du all grab her arms to place her in handcuffs. § 87(2)(b) continues to move her arms while she is being handcuffed and afterwards. After she is in handcuffs, the officers escort her by her arms towards a police vehicle.



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Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to place a person in custody (30 Board Review). Patrol Guide Procedure 221-02 states that officers should apply no more than the reasonable force necessary to gain control, and should adjust the use of force as necessary (12 Board Review). This procedure defines active resisting as physically evasive movements to defeat an officer's attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody. Active aggression is defined as a threat or overt act of assault coupled with the present ability to carry out the threat or assault, which reasonably indicates that an assault or injury to any person is imminent.

§ 87(2)(g)

§ 87(2)(g)

Allegation (K) Force: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Robert Bianco used physical force against § 87(2)(b)

Allegation (L) Force: On Clarkson Avenue and East 53rd Street in Brooklyn, an officer used physical force against § 87(2)(b)

Allegation (M) Discourtesy: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Timothy Reilly spoke discourteously to § 87(2)(b)

Allegation (N) Force: On Clarkson Avenue and East 53rd Street in Brooklyn, Police Officer Timothy Reilly used physical force against § 87(2)(b)

§ 87(2)(b) stated that after § 87(2)(b) was placed in handcuffs, two officers took him to another vehicle across the street and pushed him in the chest and stomach, in attempt to place him in the vehicle. § 87(2)(b) stated that he was not getting into the vehicle. PO Reilly came over to the second vehicle and said, "You're not getting in? Get in! Get the fuck in! Get the fuck in the

car!” PO Reilly pushed § 87(2)(b) chest, shoulders and stomach, and said, “Either you’re going to go down right here, or we’re going to make another scene. § 87(2)(g)

§ 87(2)(b) continued to refuse to enter the second police vehicle. PO Reilly grabbed both sides of § 87(2)(b) body in a hug-like motion and moved him into the car in a lying position. § 87(2)(b) right foot was partially out of the vehicle as the door was being closed slowly, and he tried to stop the door from closing by pushing against the door. § 87(2)(b) initially said that PO Reilly and another officer told him to move his foot, which he refused to do. At that point, PO Reilly slammed the door and § 87(2)(b) moved his foot. Later in the interview, § 87(2)(b) said that PO Reilly slammed the door without instructing him to move his foot, and that the door closed so that § 87(2)(b) toes were outside the door and his ankle was inside the car. Still later in the interview, § 87(2)(b) said that PO Reilly tried to close the door but the door hit his foot, preventing it from closing, at which point he pulled his foot inside the vehicle.

§ 87(2)(b) and § 87(2)(b) did not provide statements about this portion of the incident and were not in a position to witness it (03, 07, and 04 Board Review).

PO Reilly stated that he brought § 87(2)(b) to the second vehicle and placed him inside. PO Reilly told § 87(2)(b) to get in, but denied saying, “Get the fuck in,” or “Get the fuck in the car.” PO Reilly denied cursing during the incident. PO Reilly stated that he got § 87(2)(b) into the vehicle by holding his arms, sitting him down and pushing him into the vehicle, then shutting the door. PO Reilly thought that he was the person who closed the door, and stated that the door shut without difficulty. PO Reilly did not know if § 87(2)(b) tried to keep the door open, did not remember if the door touched any part of his body as it closed, and did not remember closing the door on § 87(2)(b) foot.

PO Bianco did not remember any officer making the alleged discourteous statements. PO Bianco stated that he and PO Reilly placed § 87(2)(b) in the vehicle and slid him over, and denied that either he or PO Reilly used any additional force. PO Bianco said that § 87(2)(b) did not move his legs inside the car when asked and also moved when they asked him not to move, but his feet were placed on the floorboard of the car. PO Bianco did not remember if there was any difficulty closing the door, and did not remember if § 87(2)(b) tried to prevent the door from closing, but denied that the door made contact with § 87(2)(b) foot. PO Bianco did state that § 87(2)(b) kicked the window a few times.

§ 87(2)(g)
The other officers identified as being present during the incident had been interacting with § 87(2)(b) during this portion of the incident and did not witness § 87(2)(b) get placed in the second police vehicle.

The video does not capture this portion of the incident.

Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to place a person in custody (30 Board Review). Patrol Guide Procedure 221-02 states that officers should apply no more than the reasonable force necessary to gain control (12 Board Review). This procedure defines active resisting as physically evasive movements to defeat an officer’s attempt

at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody.

§ 87(2)(b) stated that PO Reilly spoke discourteously to him while he was being placed in the second police vehicle. PO Reilly denied that this occurred and PO Bianco had no recollection of this. § 87(2)(g)

It is undisputed that § 87(2)(b) was actively resisting the officers' attempts to place him in the vehicle, and that officers pushed him in order to place him into the vehicle. § 87(2)(g)

§ 87(2)(g)

Based on § 87(2)(b) own statement, the door hitting his foot was incidental to the door being closed and was not PO Reilly using the car door to exert force on his person.

§ 87(2)(g)

Allegation (O) Abuse of Authority: On Clarkson Avenue and East 53rd Street in Brooklyn, officers threatened § 87(2)(b) with the use of force.

§ 87(2)(b) said that after § 87(2)(b) was placed in the vehicle, some civilians remained in the area. One officer told § 87(2)(b) "You could get it too," which § 87(2)(b) thought meant that he could get beaten up as well. Officers also made the statements, "You could be next," and "It could happen to you," but § 87(2)(b) could not specify which officers made these comments to him. § 87(2)(b) was shown the video of the incident, and did not see the officer he described in the video.

In his phone statement, § 87(2)(b) alleged that the officers made vague threats like, "You better keep your mouth shut, buddy," and "You're looking for trouble," which made him think he was going to be assaulted (19 Board Review).

Neither § 87(2)(b) nor § 87(2)(b) alleged that officers made threats of force to anyone in the crowd (03, 07, and 04 Board Review).

PO Bianco denied making any threats of force. PO Reilly denied that anyone made the alleged statements, and denied making any threats of force. PO Ramos did not hear any threats of force made during the incident, and denied making the statements, "You better keep your mouth shut, buddy," and, "You're looking for trouble." PO Sealy denied speaking to anyone other than § 87(2)(b). § 87(2)(b) denied hearing any of the alleged threats, and denied that any threats were made

to people in the crowd. PO Du denied making the alleged statements, denied threatening anyone with force, and was not sure if anyone else made the alleged statements. PO Fiandola did not recall making the alleged statements, did not recall anyone else making them, and did not remember making any threats of force. These officers were unable to identify any additional officers who arrived on scene.

Eleven officers are visible in the video footage taken by “§ 87(2)(b)” (including PO Reilly, PO Bianco, PO Sealy, PO Fiandola, PO Ramos, and PO Du), and seven police vehicles are visible in the video from the school (06 and 02 Board Review).

The Event documents note that four units were present at the incident, and the radio communications note that four units went over the radio as responding to the location, but only three units went over the radio to say they had responded location (20 and 28 Board Review).

§ 87(2)(b) could only describe one officer who made a threat of force towards him. § 87(2)(b) did not see this officer in the video and none of the officers identified as being on scene matched his description. All of the officers interviewed denied making threats of force and did not remember making the alleged statements or hearing anyone else threaten civilians with force. Not all of the units who responded were noted in the Event documents or radio communications, § 87(2)(g) All of the identified officers were interviewed and none of them were unable to identify any additional officers who responded to the scene. § 87(2)(g)

Allegation (P) Force: At the 67th Precinct stationhouse, Police Officer Robert Bianco used physical force against § 87(2)(b)

Allegation (Q) Discourtesy: At the 67th Precinct stationhouse, Police Officer Robert Bianco spoke discourteously to § 87(2)(b)

Allegation (R) Abuse of Authority: At the 67th Precinct stationhouse, an officer threatened § 87(2)(b) with the use of force.

Allegation (S) Discourtesy: At the 67th Precinct stationhouse, an officer spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that once he was lodged in the cells in the stationhouse, PO Bianco brought him to the fingerprinting area, which is not visible from the male cells, and is only visible from the female cells if they “try hard to see.” § 87(2)(b) told PO Bianco that he did not want to have his fingerprints and photo taken. Another officer, described as a sergeant, was also present. Initially, § 87(2)(b) said that PO Bianco said, “Alright, I guess you want to be like your mom then,” and punched him in the face. § 87(2)(b) later said that the statement about his mother was not made at this point, and that after § 87(2)(b) refused to have his fingerprints and photo taken, PO Bianco told § 87(2)(b) to come towards him so they could go to the cell. As § 87(2)(b) walked towards PO Bianco, he was looking at the ground and felt PO Bianco hit his right cheek. § 87(2)(b) told PO Bianco he was lucky that he could not hit PO Bianco because he was an officer. PO Bianco said, “Get the fuck in the cell. Don’t fuck around,” and noted that § 87(2)(b) had blood all over

his face. § 87(2)(b) then said that he did want to be finger printed, but PO Bianco put him in the cell and returned later to fingerprint and photograph § 87(2)(b)

§ 87(2)(b) alleged that an officer witnessed his interaction with PO Bianco and later made numerous discourteous statements and threats of force towards him. § 87(2)(b) described this officer as a black male standing 5'6 to 5'7" tall, muscular, bald, in his 40s, with glasses, wearing a blue uniform, and sitting by the back door of the stationhouse and noted that someone else referred to him as a sergeant.

PO Bianco stated that § 87(2)(b) was hostile and aggressive, and did not want to be fingerprinted. PO Bianco explained that the fingerprinting area is near the cells in a hallway between cells that face the opposite direction. PO Bianco brought § 87(2)(b) back to the cell, but before he put him back in the cell, § 87(2)(b) changed his mind. § 87(2)(b) did not resist while being fingerprinted, and PO Bianco did not have to use any force against him to get him to comply. PO Bianco then took photos of § 87(2)(b) and returned him to the cell. PO Bianco denied punching § 87(2)(b) in the face and denied making the alleged statement.

PO Reilly was in an office in a separate area of the stationhouse while PO Bianco did the arrest processing, and did not talk to PO Bianco about his interactions with § 87(2)(b) PO Reilly said that to his knowledge, § 87(2)(b) was not punched at the stationhouse, and did not hear anyone make the alleged statement in his presence.

There were no sergeants on the Roll Call that matched § 87(2)(b) description of the sergeant who witnessed the allegations made by PO Bianco and make discourteous statements and threats towards § 87(2)(b) (23 Board Review).

Sgt. Singh, the desk sergeant at the time of the incident, denied observing any interactions between noncompliant arrestees and officers, and did not remember seeing PO Bianco with § 87(2)(b) Sgt. Singh denied that making or hearing anyone make any of the alleged statements and denied that anyone punched § 87(2)(b)

PO Sealy, PO Du, PO Ramos, and PO Fiandola were at the stationhouse at various points that evening, and did not hear any officers use profanity towards § 87(2)(b) or see any officer punch § 87(2)(b)

§ 87(2)(b) arrest photo does not show any injuries or blood (22 Board Review).

§ 87(2)(b) alleged that PO Bianco made discourteous statements to him and used force towards him at the stationhouse, which PO Bianco denied. None of the officers were in an area to have witnessed this. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two CCRB complaints, though she was a reporting non-witness in the other CCRB case and was not named as a victim (24 Board Review).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (25 Board Review).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (31 Board Review).
- PO Reilly has been a member-of-service for seven years and has been a subject in seven CCRB complaints, 16 allegations, none of which were substantiated, and three citations for other misconduct. § 87(2)(g)
- PO Bianco has been a member-of-service for six years and has been a subject in one CCRB complaint, two allegations, neither of which were substantiated, § 87(4-b) § 87(2)(g)
- PO Sealy has been a member-of-service for seven years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)
- PO Ramos has been a member-of-service for three years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)
- PO Fiandola has been a member-of-service for four years and has been a subject in five CCRB complaints and eight allegations, none of which were substantiated. § 87(2)(g)
- PO Du has been a member-of-service for one year and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- § 87(2)(b) filed a Notice of Claim with the City of New York claiming the loss of liberty, physical injuries including neurological damage to right arm and back, injury to right elbow, injury to right shoulder, injury to back, as well as injuries not yet known, psychological and emotional injuries, lost wages, and a loss of enjoyment for life and seeking \$1,000,000 plus costs and attorney's fees as redress (16 Board Review). On March 15, 2018, a request for information regarding 50H hearings was submitted. To date, no response has been provided.

Squad No.: 3

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date